

## State vs Yogesh Gupta And Anr on 29 January, 2025

Cr. Case 69852/2024  
STATE Vs. Yogesh Gupta  
(Civil Lines Traffic Circle)

IN THE COURT OF GOWRI REGHUNATH : JMFC-10  
CENTRAL DISTRICT : TIS HAZARI COURT : DELHI

Cr. Case 69852/2024  
STATE Vs. Yogesh Gupta  
(Civil Lines Traffic Circle)

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|------------------------------------|---|---------------------------------------------------------|
| 1. Case No. of the case            | : | 69852/2024                                              |
| 2. The date of offence             | : | 16.05.2024                                              |
| 3. The name of the accused         | : | Yogesh Gupta<br>s/o Sh. Om Prakash<br>Gupta             |
| 4. The offence complained          | : | u/s 185, 3/181, 115<br>CMVR/190(2),<br>194D of M.V. Act |
| 5. The plea of the accused         | : | Not guilty                                              |
| 6. Date of institution of the case | : | 22.11.2024                                              |
| 7. Date of reserving the<br>order  | : | 25.01.2025                                              |
| 8. The date of order               | : | 29.01.2025                                              |
| 9. The final order                 | : | Convicted                                               |

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### JUDGMENT

1. Vide this judgment, this court shall dispose of traffic challan bearing no. DL-95424240516215126 issued against the accused Yogesh Gupta on 16.05.2024 under Section 185, 3/181, 115 CMVR/190(2), 194D of the Motor Vehicles Act, 1988 (hereinafter referred to as M.V. Act).

2. In brief, the case of the prosecution is that on the aforesaid date at about 09:50 p.m. near Patalashwer Mandir, within jurisdiction of circle Civil Lines, the accused was found plying a motorcycle bearing registration no. DL-3SCG-2484 without a driving license, without pollution certificate, without helmet and he was drunk driving having 172mg/100ml of alcohol. Accordingly, two separate challans were issued namely the present challan bearing no. DL-95424240516215126 against accused Yogesh who was allegedly driving the vehicle, and challan bearing no. DL-95424240516220206 against accused Puneet who is the owner of the vehicle. Upon issuance of the challans for the aforesaid offences, the vehicle of the accused was impounded on the spot.

3. Both challans were produced before this court on 22.11.2024 and the both accused persons entered appearance on the same date. Cognizance was taken of the offences stated in the challan. As the said offences are bailable, the accused Yogesh was admitted to bail on furnishing of bail bonds. As per Section 274 BNSS, notice was framed on the accused Yogesh under Sections 185, 3/181, 115 CMVR/190(2), 194D of M. V. Act to which the accused pleaded not guilty and claimed trial.

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4. Vide order dated 07.01.2025 challan no.

DL-95424240516220206 against accused Puneet was disposed of upon recording plea of guilt of the accused. Thereafter, the proceedings continued in respect of the present challan against accused Yogesh.

Prosecution evidence

5. In support of its case, the prosecution examined two witnesses, namely, ASI Uday Lama (PW-1) and HC Munesh (PW-2).

6. ASI Uday Lama (PW-1) who is the challaning officer deposed that on 16.05.2024 at about 09:00 P.M., when he was on checking duty he found accused Yogesh in drunk condition while he was driving from Nigambodh Road and going towards Pathleshwar Mandir. PW-1 stated that when he stopped the accused, he was driving a bike bearing no. DL-2484 and he was coming with one of his friends who fled the scene. Accused Yogesh was not in a condition to drive his bike. When PW-1 checked accused Yogesh, he found that the accused did not possess a driving license and pollution certificate in respect of his vehicle, and he was also not wearing his helmet. Thereafter, PW-1 issued the present challan and submitted his bike in the nearest pit which was near Tis Hazari Court. The accused was identified in court by the witness. Challans bearing number DL95424240516215126 & DL95424240516220206 were exhibited as Ex. PW-1/A and Ex. PW-1/B respectively.

7. In his cross examination, PW-1 stated that on that day, his duty hours were from 03:00 P.M. to 11:00 P.M. and he was on STATE Vs. Yogesh Gupta (Civil Lines Traffic Circle) duty with HC Munish. He further stated that he had an alcometer on that day using which he checked accused Yogesh. He further stated that he received the alcometer the same day and after completing his duty he submitted the same at his office. It was further stated that accused did not have any ID proof, and he

himself told his name to PW-1. He further stated that accused Yogesh was driving his bike alone. There were two persons, and both had their bikes and both were in drunk condition while driving their respective bikes. He stated that the person who accompanied accused Yogesh fled the scene. He further stated that he did not remember the registration number of vehicle of other bike holder. He further stated that he did not inform the local police about the passenger who ran away.

8. Thereafter HC Munesh (PW-2) was examined. He deposed that on 16.05.2024 at about 09:00 P.M. to 09:30 P.M., when he was on duty along-with ASI Udai Lama they found accused Yogesh in drunk condition while he was driving from Nigambodh Road and going towards Pathleshwar Mandir. There PW-1 and PW-2 stopped him. He was driving a bike bearing no. DL-2484. He was coming with one of his friends. The friend was on another bike but he ran away. Accused Yogesh was not in a condition to drive his bike. When PW-1 checked accused Yogesh, he found that accused did not have his driving license, pollution certificate, and helmet. Thereafter PW-2 issued the challan against accused Yogesh and PW-1 submitted the bike in the pit near Tis Hazari Court. The accused was identified in court by the witness.

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9. In his cross examination, PW-2 stated that on that day, his duty hours were from 03:00 P.M. to 11:00 P.M. On that day, PW-1 checked the accused Yogesh with alcometer. They received the alcometer on the same day, and after completing their duty they submitted it at their office. It was stated that the accused did not have any ID proof. Accused Yogesh told them his name. Accused Yogesh was driving his bike alone. There was one more person at the spot along with accused Yogesh, both had their bikes and both were in drunken condition, and the person who accompanied accused Yogesh ran away. It was further stated that the accused did not misbehave with PW-2.

#### Statement of accused

10. Vide order dated 28.11.2024 prosecution evidence was closed. Thereafter statement of the accused was recorded under Section 351 BNSS in which all incriminating evidence was put to him. The accused denied all the material produced against him and stated that he was being falsely implicated in the present case. He stated that he was not drunk, and was wearing his helmet. He further stated that he has lost his license, and he does not know about the pollution certificate of the vehicle since he is not the owner of the same and had borrowed it for an emergency. He also stated that he was driving his bike alone, and there was another bike which was stopped by the police and the driver of the said vehicle was drunk, however he fled the spot and thereafter the police issued the present challan against him. The accused admitted his signature on the challan Ex. PW1/A and Ex. PW1/B. He further stated that he did not wish to lead any defence evidence.

#### STATE Vs. Yogesh Gupta (Civil Lines Traffic Circle) Final arguments

11. During final arguments, Ld. APP for State argued that the accused failed to produce valid license and pollution certificate in respect of his vehicle. It was further submitted that the oral evidence of both prosecution witnesses along with the proof of challan and alcometer slip sufficiently establishes

the case of the prosecution. Accordingly, it was submitted that the offences under Section 185, 3/181, 115 CMVR/190(2), 194D of M. V. Act are proved beyond reasonable doubt.

12. Per contra Ld. Counsel for accused submitted that the accused is being falsely implicated in the present challan. It was argued that the accused Yogesh was present at the spot along with another individual who was on a different bike, and that individual got into an altercation with the challaning officer, and after he fled the scene, the present challan was falsely issued against accused Yogesh. It was also submitted that the phone number recorded in the challan was neither of accused Yogesh, nor of Puneet the owner of the vehicle. Further, it was submitted that the witnesses are unreliable as they could not produce the alcometer using which they conducted the test and they also failed to recall the machine number of the same. It was also argued that the witnesses could not produce any record to show they were on duty during the said period and that the particular alcometer used to examine the accused was allocated to them. Further it was argued that the alcometer slip has completely faded and there is no record of when the machine was calibrated, or that an air blank test was taken as is required before conducting the breath analysis. Lastly, it was argued that the accused was not subject to a blood test to ascertain the level of STATE Vs. Yogesh Gupta (Civil Lines Traffic Circle) alcohol therefore there was no proof of his level of intoxication. Accordingly, it was prayed that the accused be acquitted.

13. This court has heard the submissions of both sides, and considered the judicial record.

#### Analysis of Evidence

14. It is a settled principle of criminal jurisprudence, that the burden of proof lies on the prosecution to prove the case against the accused beyond reasonable doubt. To prove the offence under Section 185 MV Act beyond reasonable doubt, the prosecution must establish the existence of the following facts beyond reasonable doubt:

- i) The accused was driving or attempting to drive a motor vehicle
- ii) While driving/attempting to drive the motor vehicle, the accused had in his blood, alcohol exceeding 30 mg. per 100 ml blood
- iii) Such quantity of alcohol was detected in a test conducted by a breath analyser or any other laboratory test

15. The oral testimonies of PW-1 and PW-2 clearly state that the accused was driving the motorcycle in an intoxicated state. It has also been deposed by both witnesses that the accused was not in a condition to drive the bike. The accused and his vehicle number were correctly identified by both witnesses. In their testimony before this court, both prosecution witnesses stated that the accused was examined by a test conducted through a STATE Vs. Yogesh Gupta (Civil Lines Traffic Circle) breath analyser, as per which the quantity of alcohol in his blood was found to be 172 mg per 100 ml blood.

16. At this juncture, it would be appropriate to deal with the submission of Ld. Counsel for the accused that there is no evidence of the accused having committed drunk driving as the original alcometer slip has completely faded, and there is no evidence of either date of calibration or that a air blank test was conducted. Perusal of the record reveals that the alcometer slip, though substantially faded, is still readable. Further, the machine number of the alcometer used to conduct the breath analysis, result of the said breath analysis, and the date and time of test are also reflected in challan Ex. PW<sub>1</sub>/A and PW<sub>1</sub>/B. The said date and time corresponds with the version stated by the witnesses in their oral testimony. Therefore, there is ample evidence on record to prove that the accused was subject to a breath analysis test, accordingly this argument of Ld. Counsel is not tenable.

17. It was also argued by Ld. Counsel for the accused that the witnesses were neither able to recall the machine number of the alcometer, nor produce any record of the alcometer which was allotted to them while they were on duty on the date of the alleged incident. Perusal of the record reveals that the witnesses were not questioned on whether they remember the machine number, or whether they can produce a record of the machine allotted to them, nor was any suggestion put to them in this regard during their cross examination. In the absence the same, this argument cannot be accepted.

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18. The final submission by Ld. Counsel for the accused is that the offence of drunk driving is not made out against the accused as he was not subject to a blood test. Bare perusal of Section 204 MV Act reveals that a blood test is required only when the accused is arrested under Section 203 MV Act. While interpreting these provisions, the Hon'ble High Court of Delhi in Sanjeev Nanda v. State (Crl. Appeal No. 807/2008) held as follows:

176. Furthermore, a bare perusal of Sections 203 and 204 of M.V Act would show that for the purpose of offence committed under Section 185 of M.V Act, blood sample for laboratory test under Section 204 of M.V Act may be collected where the breath test provided for under Section 203 M.V Act could not be done as soon as reasonably practicable after the commission of the crime, due to the omission, refusal or failure of the offender. Breath analyzer test is more like a screening test used by police to determine if a person was driving a vehicle under the influence of alcohol. Sections 203 and 204 M.V Act are reproduced as under:

177. A bare look at the aforesaid two provisions of the M.V Act would show that in a case where due to failure, refusal or omission of a person, breath analyzer has not taken place, the presence of alcohol in the blood of such person can be ascertained through Laboratory test of blood sample of such person...

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19. Therefore, where the accused is not arrested, and the accused has been subject to a breath analysis test, it is not essential to carry out a blood test to bring home the charge under Section 185 M.V. Act.

20. In view of the aforementioned legal position, this court is not in agreement with the submissions of Ld. Counsel for the accused. Both witnesses have withstood the test of cross examination, and their oral testimonies have consistently supported the version of events as stated in the challan, and there is no reason to doubt their veracity. Their oral testimony is further substantiated by the result of the breath analysis.

21. Accordingly, this court finds that the prosecution has successfully proved that the accused was drunk driving his vehicle with 172 mg alcohol per 100 ml blood.

22. Now this court shall deal with the evidence pertaining to the other offences alleged to have been committed by accused Yogesh. Firstly, with respect to the offence under Section 194D M.V. Act, both PW-1 and PW-2 deposed in their examination in chief that when they saw the accused driving the said vehicle near Patalashwer Mandir, he was not wearing a helmet. The witnesses have not been contradicted on this point even during their cross-examination. Besides a bald assertion by the accused in his statement under Section 351 BNSS that he was wearing his helmet, no evidence has been produced to show the same. Therefore, this court finds that the prosecution has successfully proved that the accused was driving the motorcycle in a public STATE Vs. Yogesh Gupta (Civil Lines Traffic Circle) place without wearing protective headgear/helmet as defined in the Explanation to Section 129.

23. With respect to the offence under Section 3/181 M.V. Act, it was deposed by both witnesses that the accused did not possess a driving license. In his examination under Section 351 BNSS, the accused stated that he had lost his driving license. However the accused failed to produce any record of having been issued a driving license, or any proof of having reported its loss during trial. In these circumstances, this court finds that the prosecution has successfully proved that the accused was driving without a valid driving license.

24. Lastly, coming to the offence under Rule 115 CMVR read with Section 190(2) M.V. Act, as per the oral evidence of both witnesses, upon checking the accused he did not possess a valid pollution certificate in respect of the vehicle he was driving. When questioned about the same in his examination under Section 351 BNSS, the accused stated that he does not know about the same as he is not the owner of the vehicle. Further the accused failed to produce any record of the same during trial. Therefore, this court is of the view that the prosecution has proved beyond reasonable doubt that the accused was driving the vehicle without valid pollution certificate.

## Conclusion

25. From the above-mentioned discussion, this Court is of the view that the prosecution has successfully established the guilt of the accused under Section 185, 3/181, 115 CMVR/190(2), 194D of M.V. Act beyond reasonable doubt. Accordingly, the accused STATE Vs. Yogesh Gupta (Civil

Lines Traffic Circle) stands convicted for the offences under Section 185, 3/181, 115 CMVR/190(2), 194D of M. V. Act.

Announced in open court today i.e. 29.01.2025.

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|-----------|------------------|
| GOWRI     | REGHUNATH        |
| REGHUNATH | Date: 2025.01.29 |
|           | 14:09:03 +0530   |

(GOWRI REGHUNATH)  
JMFC-10/Central/THC  
29.01.2025

It is certified that this judgment contains 12 pages and each page bears my signatures. Digitally signed by GOWRI GOWRI REGHUNATH REGHUNATH Date:

2025.01.29 14:09:09 +0530 (GOWRI REGHUNATH) JMFC-10/Central/THC  
29.01.2025